

23STCV20228 23STCV20228

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Case Number: 23STCV20228 Hearing Date: August 14, 2026 Dept: 514

Mondragon v.

Bodega Latina Corporation

23STCV20228

Defendant's Motion for Leave to Withdraw Admission

Tentative Ruling

The motion is denied. Plaintiff's request for sanctions is denied.

Background

In this matter, Plaintiff Anthony Mondragon alleges ("Plaintiff") that on April 29, 2023, he slipped and fell while shopping in a supermarket owned, operated, or controlled by defendants.

Plaintiff filed the complaint in this action on August 23, 2023, naming as defendants Bodega Latina Corporation, Doe Store Manager, and Does 1 through 100, and asserting causes of action for (1) premises liability and (2) general negligence.

On September 15, 2023, Plaintiff amended the complaint to name Chedraui USA, Inc. as Doe 1.

On October 16, 2023, Chedraui USA, Inc., also erroneously sued as Bodega Latina Corporation ("Defendant"), filed an answer to the complaint.

In April and May 2026, the Court, at the request of Plaintiff, dismissed Doe Store Manager and Bodega Latina Corporation without prejudice.

Currently before the Court and set for hearing on August 14, 2026, is a motion filed by Defendant on June 16, 2026, for leave to withdraw its admission in response to Plaintiff's Request for Admission (Set Two), No. 60. Plaintiff filed an opposition on July 9, and Defendant filed a reply on July 16.

The motion was initially set for hearing on July 23. On July 23, the parties stipulated orally to continue the hearing to August 14.

Trial is set for February 8, 2027.

Legal Standard

Code of Civil Procedure section 2033.300 governs requests to withdraw or amend responses to requests for admission. Section 2033.300 provides:

“(a) A

party may withdraw or amend an admission made in response to a request for admission only on leave of court granted after notice to all parties.

(b) The

court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits.

(c) The

court may impose conditions on the granting of the motion that are just, including, but not limited to, the following:

(1) An

order that the party who obtained the admission be permitted to pursue additional discovery related to the matter involved in the withdrawn or amended admission.

(2) An

order that the costs of any additional discovery be borne in whole or in part by the party withdrawing or amending the admission.”

The Court of Appeal discussed section 2033.300 at length in *New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403. The Court of Appeal stated that the statute “eliminates undeserved windfalls obtain through requests for admission and furthers the policy favoring the resolution of lawsuits on the merits.” (Id. at p. 1418.)

Although the trial court has discretion in ruling on a motion brought under section 2033.300, that discretion “is not unlimited” and “must be exercised in conformity with the spirit of the law and in a manner that serves the interests of justice.” (Id., at p. 1420.)

“Because the law strongly favors trial and disposition on the merits, any doubts in applying section 2033.300 must be resolved in favor of the party seeking relief. Accordingly, the court’s discretion to deny a motion under the statute is limited to circumstances where it is clear that the mistake, inadvertence, or neglect was inexcusable, or where it is clear that the withdrawal or amendment would substantially prejudice the party who obtained the admission in maintaining that party’s action or defense on the merits.”

(Id. at pp. 1420-1421.)

Objections to Evidence

Plaintiff asserts 10

objections to Defendant’s evidence. Objections Nos. 8 and 9 are sustained; the remainder of the objections are overruled.

Discussion

The Court begins with a threshold issue.

It its briefing and supporting evidence,

Defendant discusses its responses to Requests for Admissions (“RFAs”) Nos. 59

and 60. In its notice of motion and motion and motion, however, Defendant clearly states that it seeks to withdraw its response to RFA No. 60 (only), with no reference to RFA No. 59.

The Court cannot grant relief not requested in the notice of motion and motion.

Accordingly, the only issue before the Court is whether to grant Defendant's request for leave to withdraw its response to RFA No. 60.

At some point in the litigation, likely in

2024, Plaintiff propounded Requests for Admission (Set Two). This document contains only two RFAs. In RFA No. 59, Plaintiff asked Defendant to

admit that it "negligently caused" the incident in which Plaintiff fell and was injured. In RFA No. 60, Plaintiff asked

Defendant to admit its negligence "was a substantial factor in causing harm" to Plaintiff. (See Derflinger Decl., Exh.

1; Elliott Decl., Exh. 1.)

It appears from the evidence in the record

that in early November 2024, the parties were discussing a variety of issues relating to discovery and trial scheduling.

On November 7, 2024, Defendant's then-counsel, Rosemary Do, sent an email to Plaintiff's counsel stating the following:

"[Y]ou have agreed that, if my client [will] admit RFA

Nos. 59-60 in a verified response by November 15, 2024, you will withdraw

Request for Admissions Nos. 39-58; the entire set of Special Interrogatories to

Defendant, Set Two; and Request for Production Nos. 36-37. Additionally the remaining Requests for Admissions and Requests for Production are now due December 20, 2024."

(Elliott Decl., Exh. 8.)

On November 14, 2024, Defendant served its

responses to RFAs Nos. 59 and 60. The

responses were verified by Adrian Rios (identified in the verification as

Defendant's National Coordinating Counsel, although he later testified that he is Defendant's National Claim Director).

In its verified response, Defendant stated "admit" to both RFA Nos. 59

and 60. (Derflinger Decl., Exh. 1;

Elliott Decl., Exh. 1.)

On June 9, 2025, Defendant filed a Substitution of Attorney form (which had been executed on May 1, 2025), replacing Ms. Do with Bryan Aghakhani of the Bordin Semmer LLP law firm.

On December 12, 2025, Mr. Rios was deposed in this litigation. In the deposition, Mr. Rios repeatedly testified that the responses to RFAs Nos. 59 and 60 were based on the recommendations of Ms. Do, Defendant's attorney at the time the responses were executed and served. (Elliott Decl., Exh. 6, at 27-28, 31, 37-41.)

In support of this motion, Mr. Rios filed a declaration. In the declaration, Mr. Rios identifies himself as Defendant's General Liability Manager and states that when he verified the responses admitting RFAs Nos. 59 and 60, he did so based on the advice of counsel, who informed him that in negotiating various issues with opposing counsel, "an admission of negligence would facilitate obtaining a trial continuance to allow discovery to be completed for a possible mediation. (Rios Decl., ¶ 7.)

Under Code of Civil Procedure section 2033.300, subdivision (b), a motion for leave to withdraw or amend an admission in response to an RFA can be granted only if the Court determines (among other things) "that the admission was the result of mistake, inadvertence, or excusable neglect." On this record, the Court cannot make such a determination. To the contrary, from the evidence in the record, it is abundantly clear that Defendant's admission was in no way, shape, or form the result of mistake, inadvertence, or excusable neglect. Rather, it was a fully informed litigation decision that Defendant made, after consulting with and on the advice of counsel, for the purpose of obtaining either an extension of discovery or a trial continuance, or perhaps both.

The motion is denied.

In his opposition, Plaintiff seeks sanctions. In many circumstances, filing an unsuccessful discovery motion can be considered a misuse of the discovery process giving rise to sanctions. (Code Civ. Proc., § 2030.010 & § 2030.030.) Here, however, Plaintiff seeks sanctions in the amount of \$143,817. (Opp. at p. 17.) That request is entirely inflated and completely

untethered to any amount of reasonable attorney's fees or other expenses incurred by Plaintiff in opposing the motion.
Accordingly, Plaintiff's request for sanctions is denied.

Conclusion

The Court DENIES
the motion of Defendant Chedraui USA, Inc. to withdraw its
admission in response to Plaintiff's Request for Admission, No. 60.

The Court DENIES Plaintiff's request for
sanctions.

Counsel for the moving party is ordered to give
notice.